



Bill Number: S.B. 1243

Angius Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Allows guardians and regional behavioral health authorities to waive the 10-day notice of the intended release of a patient who no longer requires the level of care offered by a mental health treatment agency.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1243
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-541.01, Arizona Revised Statutes, is amended
3 to read:

4 36-541.01. Release or discharge from treatment before
5 expiration of period ordered by court;
6 notification of intent to release or discharge;
7 hearing; immunity

8 A. A patient who is found to have a grave disability or a
9 persistent or acute disability and who is ordered to undergo treatment
10 pursuant to this article may be released from inpatient treatment when, in
11 the opinion of the medical director of the mental health treatment agency,
12 the level of care offered by the MENTAL HEALTH TREATMENT agency is no
13 longer required. The patient may agree to continue treatment voluntarily.
14 If the patient is to be released, the medical director OF THE MENTAL
15 HEALTH TREATMENT AGENCY shall arrange for an appropriate alternative
16 placement. If the patient who is to be released from inpatient treatment
17 is under a guardianship, the medical director of the mental health
18 treatment agency shall notify the guardian and any relevant regional
19 behavioral health authority AT LEAST ten days before the intended release
20 date that the patient no longer requires the level of care that is offered
21 by the MENTAL HEALTH TREATMENT agency. The guardian and, if relevant, the
22 regional behavioral health authority shall arrange alternative placement
23 with the advice and recommendations of the medical director of the mental
24 health treatment agency. [THE GUARDIAN AND, IF RELEVANT, THE REGIONAL
25 BEHAVIORAL HEALTH AUTHORITY MAY WAIVE THE TEN-DAY NOTICE REQUIRED BY THIS
26 SUBSECTION.]

27 B. A patient who is ordered to undergo treatment pursuant to this
28 article may be released from treatment before the expiration of the period
29 ordered by the court if, in the opinion of the medical director of the

1 mental health treatment agency, the patient no longer is, as a result of a
2 mental disorder, a danger to others or a danger to self or no longer has a
3 persistent or acute disability or a grave disability. ~~A person who is~~
4 ~~ordered to undergo treatment as a danger to others or who has had a~~
5 ~~petition filed by a prosecutor pursuant to section 13-4517 may not be~~
6 ~~released or discharged from treatment before the expiration of the period~~
7 ~~for treatment ordered by the court unless the medical director first gives~~
8 ~~notice of intention to do so as provided by this section.~~ IF THE PATIENT
9 WHO IS TO BE RELEASED FROM TREATMENT IS UNDER A GUARDIANSHIP, AT LEAST TEN
10 DAYS BEFORE THE INTENDED RELEASE DATE THE MEDICAL DIRECTOR OF THE MENTAL
11 HEALTH TREATMENT AGENCY SHALL NOTIFY THE GUARDIAN THAT IN THE OPINION OF
12 THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY THE PATIENT NO
13 LONGER IS, AS A RESULT OF A MENTAL DISORDER, A DANGER TO OTHERS OR A
14 DANGER TO SELF OR NO LONGER HAS A PERSISTENT OR ACUTE DISABILITY OR A
15 GRAVE DISABILITY AND THAT THE MENTAL HEALTH TREATMENT AGENCY INTENDS TO
16 RELEASE THE PATIENT FROM TREATMENT. A GUARDIAN IS NOT REQUIRED TO FILE A
17 DEMAND FOR NOTICE PURSUANT TO THIS SUBSECTION.

18 C. Before the release or discharge of a patient who is ordered to
19 undergo treatment PURSUANT TO THIS ARTICLE AND BEFORE THE EXPIRATION OF
20 THE PERIOD FOR TREATMENT ORDERED BY THE COURT, the medical director of the
21 mental health treatment agency shall notify the following of the ~~medical~~
22 ~~director's~~ intention OF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH
23 TREATMENT AGENCY to release or discharge the patient:

24 1. The presiding judge of the court that entered the order for
25 treatment.

26 2. Any relative or victim of the patient who has filed a demand for
27 notice with the ~~treatment agency~~ COURT.

28 3. Any person found by the court to have a legitimate reason for
29 receiving notice.

30 4. THE PATIENT'S GUARDIAN.

31 D. If the patient is undergoing court-ordered treatment as the
32 result of a petition filed by a ~~prosecuting agency~~ PROSECUTOR pursuant to
33 section 13-4517, ALL OF THE FOLLOWING APPLY:

34 1. THE PERSON MAY NOT BE RELEASED OR DISCHARGED FROM TREATMENT
35 BEFORE THE EXPIRATION OF THE PERIOD FOR TREATMENT ORDERED BY THE COURT
36 UNLESS THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY FIRST
37 GIVES NOTICE AS PROVIDED IN THIS SUBSECTION.

38 2. The medical director of the mental health treatment agency shall
39 notify the court and the prosecuting agency if a civil commitment order
40 issued pursuant to this chapter expires or is terminated, or if the
41 patient is discharged to outpatient treatment.

42 3. The medical director OF THE MENTAL HEALTH TREATMENT AGENCY shall
43 provide this notice by mail at least five days before the anticipated date
44 of the expiration, termination or discharge.

1 4. This subsection does not apply to amended orders that are a
2 result of the patient's need for acute or emergency care during the period
3 of court-ordered treatment.

4 ~~E. If the medical director of the mental health treatment agency is~~
5 ~~unable to determine, based on the information submitted pursuant to~~
6 ~~subsection F of this section, that a person who has filed a demand for~~
7 ~~notice is a victim, the medical director shall inform that person that~~
8 ~~that person's demand for notice is denied and that notice will not be~~
9 ~~given unless ordered by the court pursuant to subsection G of this~~
10 ~~section.~~

11 ~~F.~~ E. A demand for notice by a relative or victim, and a petition
12 for notice by other persons, shall be FILED WITH THE COURT AND SHALL BE
13 MADE on a form prescribed by the administration, ~~and shall include~~
14 INCLUDING the following information:

15 1. THE FULL NAME OF THE PATIENT AND THE MENTAL HEALTH NUMBER
16 ASSIGNED TO THE CASE BY THE SUPERIOR COURT.

17 ~~1.~~ 2. The full name of the person to receive notice.

18 ~~2.~~ 3. The address to which notice is to be mailed.

19 ~~3.~~ 4. The telephone number of the person to receive notice.

20 ~~4.~~ 5. The FAMILIAL relationship OF THE PERSON to the patient, if
21 any, ~~or the reasons why the person believes the person has a legitimate~~
22 ~~reason to receive notice.~~

23 6. THE FACTUAL BASIS FOR THE PERSON'S CLAIM THAT THE PERSON IS A
24 VICTIM ENTITLED TO NOTICE PURSUANT TO THIS SECTION.

25 7. THE REASONS WHY THE PERSON BELIEVES THE PERSON HAS A LEGITIMATE
26 REASON TO RECEIVE NOTICE.

27 ~~5.~~ 8. A statement that the person will advise the MENTAL HEALTH
28 treatment agency in writing by certified mail, return receipt requested,
29 of any change in the address to which notice is to be mailed.

30 ~~6. The full name of the patient who is ordered to undergo treatment~~
31 ~~as a danger to others or who has had a petition filed by a prosecutor~~
32 ~~pursuant to section 13-4517.~~

33 ~~7. The mental health number assigned to the case by the superior~~
34 ~~court.~~

35 ~~G.~~ F. ~~if~~ WHEN the court receives a demand for notice by a relative
36 or victim, IF THE COURT DETERMINES THAT THE RELATIVE OR VICTIM FILING THE
37 DEMAND FOR NOTICE IS ENTITLED TO NOTICE BEFORE RELEASING OR DISCHARGING
38 THE PATIENT, the court shall order the medical director of the mental
39 health treatment agency not to release or discharge the patient before the
40 expiration of the period of court-ordered treatment without first giving
41 notice to the relative or victim as provided in subsection ~~H~~ G of this
42 section. After considering a petition for notice, if the court finds that
43 the petitioner has a legitimate reason for receiving prior notice, the
44 court may order the medical director of the mental health treatment agency
45 not to release or discharge the patient from inpatient treatment before

1 the expiration of the period of court-ordered treatment without first
2 giving notice to the petitioner as provided in subsection ~~H~~ G of this
3 section. Any order for notice shall be delivered to the mental health
4 treatment agency and shall be filed with the patient's clinical record.
5 If the patient is transferred to another agency or institution, any orders
6 for notice shall be transferred with the patient.

7 ~~H~~ G. A notice of intention to release or discharge shall include
8 the following information:

- 9 1. The name of the patient to be released or discharged.
- 10 2. The type of release or discharge.
- 11 3. The date of anticipated release or discharge. ~~Notices~~

12 H. A NOTICE OF INTENTION TO RELEASE OR DISCHARGE shall be placed in
13 the mail, postage prepaid and addressed to the court and to each person
14 for whom notice has been ordered OR WHO IS ENTITLED TO RECEIVE NOTICE
15 PURSUANT TO THIS SECTION, at least ten days before the date of intended
16 release or discharge, except that notice shall be sent to the prosecuting
17 agency at least five days before the date of intended release or
18 discharge. For purposes of computing the notice requirement, the day of
19 mailing shall not be counted.

20 I. Any person for whom prior notice is required pursuant to this
21 section, or the court, may make a motion within the notification period
22 that requires the court to determine whether the standard for release of
23 the patient before the expiration of the period for court-ordered
24 treatment has been met. A determination that the standard for release has
25 been met may be made by the court based on a review of the record and any
26 affidavits submitted without further hearing. For good cause, the court
27 may order an evidentiary hearing. Whether or not a hearing is held, the
28 court shall make a determination at the earliest possible time but ~~no~~ NOT
29 longer than three weeks after the anticipated date of release pursuant to
30 subsection ~~H~~ G of this section, and the patient shall be retained for the
31 additional time required for the court's determination. In making its
32 determination the court may order an independent examination of the
33 patient. If a motion is not made, the patient may be released in
34 accordance with the terms set forth in the notice without further court
35 order. If a hearing is held pursuant to this subsection, the court shall
36 order the medical director of the mental health treatment agency to
37 provide the patient's records, including medical and treatment records, to
38 the court, ANY INDEPENDENT EXAMINER and the prosecuting agency.

39 J. IF THE COURT DETERMINES THAT THE STANDARD FOR RELEASE HAS NOT
40 BEEN MET, THE COURT SHALL ORDER THE PATIENT TO CONTINUE TREATMENT UNDER
41 THE COURT ORDER FOR TREATMENT UNTIL THE EXPIRATION OF THE COURT ORDER.

42 ~~J~~ K. If a motion has not been made pursuant to subsection I of
43 this section, the patient may be released or discharged and the medical
44 director of the mental health treatment agency shall send to the court a
45 certificate that the patient is no longer a danger to others or a danger

1 to self or no longer has a persistent or acute disability or a grave
2 disability as the result of a mental disorder and therefore is released
3 before the expiration of the period ordered for treatment. The court
4 shall enter an order terminating the patient's court-ordered treatment.

5 ~~K.~~ L. The medical director of the mental health treatment agency
6 shall not be held civilly liable for any acts committed by a patient who
7 is released before the expiration of the period of court-ordered treatment
8 if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY has in good
9 faith followed the requirements of this section.

10 Sec. 2. Section 36-543, Arizona Revised Statutes, is amended to
11 read:

12 36-543. Annual review; patients with a grave disability or a
13 persistent or acute disability; notice; court order
14 for continued treatment; rules; immunity

15 A. Within ninety days before the expiration of a court order for
16 treatment, the medical director of the mental health treatment agency
17 shall conduct an annual review of a patient who has been found to have a
18 grave disability or a persistent or acute disability and who is undergoing
19 court-ordered treatment to determine whether the continuation of
20 court-ordered treatment is appropriate and to assess the needs of the
21 patient for guardianship or conservatorship, or both. The annual review
22 shall consist of the mental health treatment and clinical records
23 contained in the patient's treatment file. IN DETERMINING WHETHER A
24 CONTINUATION OF COURT-ORDERED TREATMENT IS APPROPRIATE, AS PART OF ITS
25 ANNUAL REVIEW THE MENTAL HEALTH TREATMENT AGENCY SHALL SOLICIT, ACCEPT AND
26 CONSIDER INFORMATION RELEVANT TO THE HISTORY OF THE PATIENT'S BEHAVIOR
27 DURING AND BEFORE THE PERIOD OF COURT-ORDERED TREATMENT FROM PERSONS KNOWN
28 TO THE MENTAL HEALTH TREATMENT AGENCY WHO HAVE A SIGNIFICANT RELATIONSHIP
29 WITH THE PROPOSED PATIENT, INCLUDING FAMILY MEMBERS AND GUARDIANS. The
30 mental health treatment agency shall keep a record of the annual review.
31 If the medical director OF THE MENTAL HEALTH TREATMENT AGENCY believes
32 that a continuation of court-ordered treatment is appropriate, the medical
33 director of the mental health treatment agency shall appoint one or more
34 psychiatrists to carry out a psychiatric examination of the patient. In
35 any proceeding conducted pursuant to this section, a patient has the right
36 to have an analysis of the patient's mental condition by an independent
37 evaluation pursuant to section 36-538.

38 B. Each examiner participating in the psychiatric examination of
39 the patient shall submit a report to the medical director of the mental
40 health treatment agency that includes the following:

41 1. The examiner's opinions as to whether the patient continues to
42 have a grave disability or a persistent or acute disability as the result
43 of a mental disorder and be in need of continued court-ordered
44 treatment. In evaluating the patient's need for continued court-ordered
45 treatment, the examiner must consider, along with all other evidence, the

1 patient's history before and during the current period of court-ordered
2 treatment, the patient's compliance with recommended treatment and any
3 other evidence relevant to the patient's ability and willingness to follow
4 recommended treatment with or without a court order.

5 2. A statement as to whether suitable alternatives to court-ordered
6 treatment are available.

7 3. A statement as to whether voluntary treatment would be
8 appropriate.

9 4. A review of the patient's status as to guardianship or
10 conservatorship, or both, the adequacy of existing protections of the
11 patient and the continued need for guardianship or conservatorship, or
12 both. If the examiner concludes that the patient's needs in these areas
13 are not being adequately met, the examiner's report shall recommend that
14 the court order an investigation into the patient's needs.

15 5. If the patient has an existing guardian who does not have the
16 mental health powers authorized pursuant to section 14-5312.01, a
17 recommendation as to whether the additional mental health powers
18 authorized by section 14-5312.01 should be imposed on the existing
19 guardian and whether the patient's needs can be adequately addressed by a
20 guardian with mental health powers without the need for a court order for
21 treatment or whether the court order for treatment should continue
22 regardless of the additional mental health powers imposed on the guardian.

23 6. The results of any physical examination conducted during the
24 period of court-ordered treatment if relevant to the psychiatric condition
25 of the patient.

26 C. After conducting the annual review as prescribed in this
27 section, if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY
28 believes that continued court-ordered treatment is necessary or
29 appropriate, not later than thirty days before the expiration of the court
30 order for treatment, the medical director OF THE MENTAL HEALTH TREATMENT
31 AGENCY shall file with the court an application for continued
32 court-ordered treatment alleging the basis for the application and shall
33 file simultaneously with the application any psychiatric examination
34 conducted as part of the annual review. If the patient is under
35 guardianship, the medical director OF THE MENTAL HEALTH TREATMENT AGENCY
36 shall mail a copy of the application to the patient's guardian. AFTER
37 CONDUCTING THE ANNUAL REVIEW AS PRESCRIBED IN THIS SECTION, IF THE PATIENT
38 IS UNDER A GUARDIANSHIP AND THE MEDICAL DIRECTOR OF THE MENTAL HEALTH
39 TREATMENT AGENCY DECIDES NOT TO FILE AN APPLICATION FOR CONTINUED
40 COURT-ORDERED TREATMENT, THE MENTAL HEALTH TREATMENT AGENCY SHALL NOTIFY
41 THE PATIENT'S GUARDIAN OF THIS DECISION AT LEAST THIRTY DAYS BEFORE THE
42 EXPIRATION OF THE COURT ORDER FOR TREATMENT. THE GUARDIAN MAY REQUEST
43 THAT THE PATIENT BE EVALUATED BY AN INDEPENDENT EVALUATOR PURSUANT TO
44 SECTION 36-538.

1 D. AT LEAST FIFTEEN DAYS BEFORE THE EXPIRATION OF THE COURT ORDER
2 FOR TREATMENT, THE PATIENT'S GUARDIAN MAY FILE WITH THE COURT AN
3 APPLICATION FOR CONTINUED COURT-ORDERED TREATMENT ALLEGING THE BASIS FOR
4 THE APPLICATION AND SHALL FILE SIMULTANEOUSLY WITH THE APPLICATION ANY
5 PSYCHIATRIC EXAMINATION CONDUCTED ON THE PATIENT TO SUPPORT THE
6 APPLICATION. THE APPLICATION AND ANY HEARING HELD PURSUANT TO THIS
7 SUBSECTION SHALL COMPLY WITH SUBSECTIONS E, F AND G OF THIS SECTION.

8 ~~D.~~ E. If an application for continued court-ordered treatment is
9 filed, all of the following apply:

10 1. If the patient does not have an attorney, the court shall
11 appoint an attorney to represent the patient.

12 2. Within ten days after appointment, an attorney appointed
13 pursuant to this subsection, to the extent possible, shall fulfill the
14 duties imposed pursuant to section 36-537, review the ~~medical director's~~
15 report OF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY and
16 the patient's medical records, interview any physician who prepared a
17 report on the annual review and file a response requesting a hearing or
18 submitting the matter to the court for a ruling based on the record
19 without a hearing.

20 3. If a hearing is not requested, the court shall rule on the
21 application or set the matter for hearing. If a hearing is requested, the
22 hearing shall be held within three weeks after the request for hearing is
23 filed. The hearing may be continued for good cause on motion of a party
24 or on the court's own motion, and the expiration of the current court
25 order for treatment may be extended until a ruling by the court on an
26 application filed pursuant to this subsection.

27 4. The patient's attorney must be present at all hearings and may
28 subpoena and cross-examine witnesses and present evidence. The patient
29 has the right to attend all hearings, but may choose not to attend a
30 hearing. The patient's attorney may waive the patient's presence after
31 speaking with the patient and confirming that the patient understands the
32 right to be present and does not desire to attend. If the patient is
33 unable to be present at the hearing for medical or psychiatric reasons and
34 the hearing cannot be conducted where the patient is being treated or
35 confined, or the patient cannot appear by another reasonably feasible
36 means, the court shall require clear and convincing evidence that the
37 patient is unable to be present at the hearing and on such a finding may
38 proceed with the hearing in the patient's absence.

39 5. The evidence presented by the applicant includes the testimony
40 of one or more witnesses acquainted with the patient during the period of
41 court-ordered treatment, which may be satisfied by a statement agreed on
42 by the parties, and the testimony of any physician who performed an annual
43 review of the patient, which may be satisfied by stipulating to the
44 admission of the examining physicians' written report prepared pursuant to
45 subsection B of this section. The court may waive the need for the

1 applicant to present the testimony of witnesses acquainted with the
2 patient as required by this subsection, if it finds that the need for a
3 continued court order for treatment has been established by clear and
4 convincing evidence from the other testimony and evidence presented at the
5 hearing.

6 6. At a hearing held pursuant to this subsection, the court, with
7 notice, may impose on an existing guardian additional powers pursuant to
8 section 14-5312.01. If the court finds that the patient's needs can be
9 adequately met by an existing guardian with the additional powers pursuant
10 to section 14-5312.01 and that a court order for treatment is not
11 necessary to ensure compliance with necessary treatment, the court may
12 terminate the court order for treatment or decline to issue an order
13 continuing court-ordered treatment. The court may also order an
14 investigation into the need for guardianship or conservatorship, or both,
15 and may appoint a suitable person or agency to conduct the investigation.
16 The appointee may include a court-appointed guardian ad litem, a
17 court-appointed investigator pursuant to section 14-5308 or the public
18 fiduciary if there is no person willing and qualified to act in that
19 capacity. The court shall give notice of the appointment to the appointee
20 within three days after the appointment. The appointee shall submit the
21 report of the investigation to the court within twenty-one days. The
22 report shall include recommendations as to who should be guardian or
23 conservator, or both, and the findings and reasons for the recommendation.
24 If the investigation and report so indicate, the court may authorize an
25 appropriate person to file a petition for appointment of a guardian or
26 conservator for the patient.

27 ~~F.~~ F. If a hearing is held pursuant to subsection ~~D~~ E of this
28 section, the party seeking the renewal of the court order must prove all
29 of the following by clear and convincing evidence:

30 1. The patient continues to have a mental disorder and, as a result
31 of that disorder, has either a persistent or acute disability or a grave
32 disability.

33 2. The patient is in need of continued court-ordered treatment.

34 3. The patient is either unwilling or unable to accept treatment
35 voluntarily.

36 ~~F.~~ G. After a hearing held pursuant to subsection ~~D~~ E of this
37 section, the court may order the patient to be released from court-ordered
38 treatment or to undergo continued court-ordered treatment for a period not
39 to exceed the time periods prescribed in section 36-540, subsection D.

40 ~~G.~~ H. The director shall create and operate a program to ensure
41 that the examination and review of persons with grave disabilities or
42 persistent or acute disabilities under court order are carried out in an
43 effective and timely manner. The director shall adopt rules needed to
44 operate this program.

Senate Amendments to S.B. 1243

1 ~~H.~~ I. The medical director of the mental health treatment agency
2 is not civilly liable for any acts committed by the released patient if
3 the medical director has in good faith complied with the requirements of
4 this article.

5 Enroll and engross to conform
6 Amend title to conform

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